

25VECV05353 25VECV05353

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-21

Motion: MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES

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Case Number: 25VECV05353 Hearing Date: September 21, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

OZER-ZELZAH

APARTMENTS,

Plaintiffs,

vs.

JESSICA MULHEARN,

Defendants.

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CASE

NO: 25VECV05353

[TENTATIVE]

ORDER RE:

MOTION

FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES

Dept.

I

HEARING

DATE: SEPTEMBER 21, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: APRIL 15, 2026

TRIAL

DATE: JULY 12, 2026

I.

BACKGROUND

Plaintiff

alleges it entered into a settlement agreement with Defendant Jessican Mulhearn on August 23, 2022 (the "Settlement Agreement") in connection with Mulhearn v. ADR Properties, et al., Case No. 22STCV08195 (the "Underlying Action"). Plaintiff alleges Defendant breached the Settlement Agreement when she failed to vacate Apartment 315 at 5417 Zelzah Avenue, Encino, CA by August 31, 2024.

Plaintiff alleges it filed a motion to enforce the Settlement Agreement in the Underlying Action, which the court granted. Pursuant to the court's order enforcing the Settlement Agreement, judgment was entered as follows: (1) possession of the unit was given to plaintiff; (2) Defendant was to vacate the unit within three days after entry of the order enforcing settlement; and (3) Plaintiff was entitled to the fair market rent of the unit after August 31, 2024 (the "Judgment"). Plaintiff alleges Mulhearn did not vacate the unit until August 14, 2025 and has not paid any compensation for occupying the unit after August 31, 2024.

Plaintiff

alleges that Defendant was required under the Settlement Agreement to leave the unit in the same condition she received it in, minus wear and tear. Plaintiff alleges Defendant failed to do so.

On

September 18, 2025, Plaintiff filed this action against Defendant alleging (1) breach of contract; and (2) unjust enrichment.

On

April 15, 2026, Plaintiff filed a motion for summary judgment or in the alternative, summary adjudication. On July 9, 2026, Plaintiff filed a notice of non-opposition. On July 9, 2026, Defendant filed a motion to continue the hearing on the motion. On July 13, 2026, Plaintiff filed an opposition to the motion to continue. On July 20, 2026, the court granted the motion to continue the hearing on the motion for summary judgment to September 19, 2026.

II.

LEGAL STANDARDS

In reviewing a motion for summary judgment, the Court must apply a three-step analysis: (1) identify the issues framed by the pleadings; (2) determine whether the moving party has met his or her initial burden; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue. (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Cal. Code of Civ. Proc. § 437c(p)(2).)

A moving defendant may satisfy the initial burden to show that one or more elements cannot be established by “presenting evidence that conclusively negates an element of the plaintiff’s cause of action or by relying on the plaintiff’s factually devoid discovery responses to show that the plaintiff does not possess, and cannot reasonably obtain, evidence to establish that element.” (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1119; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856 [it is insufficient for the defendant to merely point out the absence of evidence.]; *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) “The defendant must present evidence, typically in the form of factually devoid discovery responses, showing that plaintiff does not have and cannot reasonably obtain evidence to support his or her claim.” (*Id.*)

Unless and until a defendant meets that burden, the plaintiff has no burden to present controverting evidence. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 [“There is no obligation on the opposing party . . . to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element . . . necessary to sustain a judgment in his favor.”].) If a defendant fails to meet that burden, summary judgment must be denied, even if the plaintiff fails to file an opposition and fails to proffer any evidence.

On the

other hand, if the defendant “has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials in its pleadings to show that a triable issue of material fact exists, but instead “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

III.

DISCUSSION

A. Defendant did not file any opposition despite continuance

The court continued the motion for summary judgment from July 20, 2026 to September 19, 2026 so that Defendant could prepare an opposition. Defendant has not filed an opposition as of September 16, 2026.

The motion is unopposed. However, Plaintiff may only obtain the requested relief if it satisfies its initial burden as moving party, regardless of whether the motion is unopposed. (Consumer Cause, Inc., supra, 91 Cal.App.4th 454, 468.)

B. Plaintiff fails to satisfy its burden as moving party on the first cause of action for breach of contract

Plaintiff fails to allege or establish breach of the Settlement Agreement based on Defendant’s failure to pay fair market rent from September 1, 2024 to August 14, 2025.

(Complaint, ¶¶11-12.) Plaintiff alleges the obligation to pay fair market rent was based on the Judgment entered in the Underlying Action after the court granted its motion to enforce settlement agreement. (Id.) There is no allegation that the Settlement Agreement created any obligation to pay fair market rent for the period of September 1, 2024 to August 14, 2025.

Plaintiff

also fails to present any evidence that the Settlement Agreement required Defendant to pay fair market rent from September 1, 2024 August 14, 2025. (Plaintiff's SSUMF Nos. 9-10; Ozer Dec., ¶¶11-13, Exs. 1 and 2.) The Settlement Agreement contains no such provision. (Ozer Dec., Ex. 1.) The Settlement Agreement only states that Plaintiff would waive any rental payments between the date of the Settlement Agreement to August 31, 2024, "for which the reasonable fair rental value per month would have been [\$3,095]." (Id. at ¶4.3.) However, the Judgment entered in the Underlying Action imposed such an obligation on Defendant. (Plaintiff's SSUMF Nos. 9-10, Ozer Dec., Ex. 2.)

Plaintiff therefore fails to establish breach of the Settlement Agreement based on Defendant's failure to pay fair market rent. Plaintiff is in fact seeking to enforce the Judgment entered in the Underlying Action. Plaintiff cannot do so by a complaint for breach of contract.

Plaintiff also alleges breach of the Settlement Agreement based on the failure to vacate the unit by August 31, 2024. (Complaint, ¶¶9, 10,; Ozer Dec., Ex. 1, ¶4.1.) However, Plaintiff already moved to enforce the settlement agreement based on Defendant's breach of ¶4.1 and her obligation to vacate by August 31, 2024. Plaintiff was entitled to either sue in a separate action for that breach or file a motion to enforce the settlement agreement, not both. To the extent Plaintiff asserts otherwise, Plaintiff fails to cite any authority allowing it to sue for breach of the same contractual provision that was the basis of its motion to enforce the settlement agreement in the Underlying Action and the Judgment entered therein.

Plaintiff also alleges breach of ¶4.1 based on Defendant's failure to leave the unit in the same condition as it was in when she received it. (Complaint, ¶¶17, 18.) Plaintiff alleges damages in the amount of \$1,775 as a result of Defendant's breach of ¶4.1. However, summary adjudication can only be granted when it fully disposes of a cause of action. (Code Civ. Proc., §437c, subd. (f)(1); Hindin

v. Rust (2004) 118 Cal.App.4th 1247, 1259 (motion for summary adjudication “purporting to establish that some but not all of the multiple grounds for liability asserted in the prior action were brought with probable cause is improper for failure to completely dispose of an entire cause of action” as required under section 437c(f)(1); cf. Velocity Investments, LLC v. Nguyen (2026) 2026 WL 2542811, at *2 (“Regardless of how pled in the complaint, allegations may consist of two separate and distinct causes of action...In that case, a party may present a motion for summary adjudication challenging a separate and distinct wrongful act even though combined with other wrongful acts alleged in the same cause of action.”)) Defendant’s breach of ¶4.1’s obligation to leave the unit in the same condition is only one part of the first cause of action. Even if Plaintiff satisfied its burden as to that specific breach, it would not fully dispose of the breach of contract cause of action. In addition, the same issue arises as to whether Plaintiff is barred from suing on ¶4.1 of the Settlement Agreement when a judgment was already entered thereon in the Underlying Action pursuant to Code of Civil Procedure section 664.6.

Plaintiff

fails to satisfy its burden as moving party on summary judgment or adjudication as to the first cause of action for breach of contract. Plaintiff’s motion for summary judgment is denied. Plaintiff’s motion for summary adjudication is also denied.

B.

Plaintiff fails to satisfy its burden on the second cause of action for unjust enrichment

Whether unjust enrichment is a recognized as a cause of action is “largely academic because this district [First] has long taken the position that, even if unjust enrichment does not describe an actual cause of action, the term is synonymous with restitution, which can be a theory of recovery.” (O’Grady v. Merchant Exchange Productions, Inc. (2019) 41 Cal.App.5th 771, 791.) Unjust enrichment is synonymous with a claim for restitution. (McBride v. Boughton (2004) 123 Cal.App.4th 379, 387.)

“There

are several potential bases for a cause of action seeking restitution. For example, restitution may be awarded in lieu of breach of contract damages when

the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. Alternatively, restitution may be awarded where the defendant obtained a benefit from the plaintiff by fraud, duress, conversion, or similar conduct. In such cases, the plaintiff may choose not to sue in tort, but instead to seek restitution on a quasi-contract theory (an election referred to at common law as 'waiving the tort and suing in assumpsit')." (McBride, *supra*, 123 Cal.App.4th at 388.)

There is a split among California courts regarding whether unjust enrichment is an independent cause of action. (O'Grady, *supra*, 41 Cal.App.5th at 791 (recognizing there are decisions holding that unjust enrichment is not a cause of action, "but this appellate district appears split on the issue).) Although some California courts have suggested the existence of a separate cause of action for unjust enrichment, other courts have held that there is no cause of action in California for unjust enrichment.

(Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, 1593 (listing elements of unjust enrichment claim); Levine v. Blue Shield of Cal. (2010) 189 Cal.App.4th 1117, 1138, quoting Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1370 (no independent cause of action for unjust enrichment; unjust enrichment equivalent of restitution cause of action).)

Plaintiff's

second cause of action seeks recovery of fair market rent for Defendant's occupancy of unit 315 from September 1, 2024 to August 14, 2025. Unjust enrichment is not a cause of action as stated by the Second Appellate District in Bank of New York Mellon v.

Citibank, N.A. (2017) 8 Cal.App.5th 935, 955. Even if construed as a cause of action for restitution, Plaintiff's right to payment is not based on any contract but on the judgment entered in the Underlying Action, nor is there any allegation of fraud, duress, conversion or similar conduct.

(McBride, *supra*, 123 Cal.App.4th at 388.) Plaintiff's evidence

only establishes Defendant's failure to satisfy the Judgment entered in the Underlying Action.

Plaintiff

fails to satisfy its burden as moving party on the motion for summary judgment or adjudication of the second cause of action for unjust enrichment. Plaintiff's motion for summary judgment, or

in the alternative, summary adjudication is denied as to the Second Cause of Action.

IV.

CONCLUSION

Plaintiff's

Motion for Summary Judgment, or in the alternative, Summary Adjudication is denied.

Moving

party to give notice.

Dated: XX,

2026

Hon. Karen Moskowitz

Judge

of the Superior Court